

Court No. - 44

Case :- CRIMINAL MISC. WRIT PETITION No. - 2340 of 2024

Petitioner :- Pramod Kumar

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Sanjai Srivastava

Counsel for Respondent :- G.A.

Hon'ble Arvind Singh Sangwan,J.

Hon'ble Shiv Shanker Prasad,J.

1. Heard Mr. Sanjai Srivastava, learned counsel for the petitioner, Mr. J.K. Upadhyay, learned counsel for the informant and learned AGA for the State.

2. This writ petition has been filed seeking quashing of the first information report dated 10.12.2022 arising out of Case Crime No. 4681 of 2022, under Section 135 of Electricity Act, 2023., Police Station- Anti Power Theft, District- Jalaun.

3. Learned counsel for the petitioner inter alia contends that the FIR has been registered without verifying the record with malafide motive.

4. Learned counsel submits that on 10.11.2022, on account of burning of Three Phase Meter at the premises of the petitioner where a floor will is installed, intimation was sent and upon verification of this fact, the official of the electricity department recommended for replacement of a meter.

5. Learned counsel has relied upon another application given by the petitioner to the Executive Engineer on 05.12.2022 and recommendation made by the Sub-Divisional Officer to the Executive Engineer acknowledging that the meter of the petitioner is burnt and it should be replaced immediately.

6. Learned counsel then relied upon the certificate dated 13.12.2022 from the Dakshinanchal Vidyut Vitran Nigam Ltd. Agra wherein, it is noticed that on 08.12.2022, as directed by the Executive Engineer, a new meter was installed in place of the burnt meter.

7. Learned counsel submits that the very next date i.e. on 09.12.2022, this FIR has been registered with the allegation that the petitioner is committing theft of electricity by direct supply

without a meter. He also submits that the direct supply was granted to the petitioner by the official of the Electricity Board and despite that the FIR has been registered by the informant- the then Executive Engineer, Madhogarh, District- Jalaun.

8. Learned counsel has relied upon the U.P. Electricity Supply Code, 2005 wherein, at clause 5.8, it is provided that in case of a burnt meter, the licensee shall restore the supply immediately after by-passing the burnt meter i.e by providing a direct light which was provided by the Nigam in case of the petitioner. He has also relied upon Clause 5.9(c) wherein, it has been specifically provided that in case the meter is found burnt and there is reason to believe that an official of the licensee gave a direct connection pending replacement of a meter, a case of direct theft shall not be booked.

9. List on 21.03.2024 as fresh.

10. In the meantime, Mr. Sanjay Kumar/ Ms. Chandrika Prasad, Executive Engineer who got the FIR registered, is directed to file his/her affidavit as to why without verifying the record, this FIR was registered. If the affidavit is not filed, he/she will remain present in person.

11. A show cause notice is also issued to the concerned Executive Engineer as to why the cost of Rs. 1 lakh be not imposed upon him/her for unnecessarily harassing the petitioner.

Order Date :- 21.2.2024

Mohini

Court No. - 42

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Petitioner :- Pramod Kumar

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Sanjai Srivastava

Counsel for Respondent :- G.A.

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Gajendra Kumar,J.

1. Heard learned counsel for the petitioner, Mr. P.C. Srivastava, learned Sr. Advocate, assisted by Mr. G.K. Upadhyaya, learned Advocate, appeared on behalf of the Electricity-department and perused the record.

2. Sri P.C. Srivastava, learned Sr. Advocate submits that this Court vide order dated 21.2.2024 has directed to Mr. Sanjay Kumar/Ms. Chandrika Prasad, Executive Engineer to file his/her affidavit as to why without verifying the record, the aforesaid F.I.R. was registered and if he same is not filed, he/she will remain present in person. In response to the said order, Mr. Sanjay Kumar, Junior Engineer of the Electricity Department is present today and the Executive Engineer, who is the competent authority in the matter, could not appear due to some unavoidable circumstances. The appropriate affidavit may be filed in the matter and the presence of the Executive Engineer may be dispensed with for today. In case the Court insists then definitely in response to the earlier order, he will be present tomorrow.

3. Mr. P.C. Srivastava, learned Sr. Advocate very fairly conceded the fact that F.I.R. in question, which was registered under Section 135 of the Electricity Act, is compoundable under Section 152 of the Electricity Act and the Department is inclined to withdraw the F.I.R. He prays that one more indulgence may be accorded so that appropriate affidavit may be filed in the matter.

4. On the request of Mr. P.C. Srivastava, learned Sr. Advocate, the matter is passed over for the day.

5. Put up tomorrow i.e. 22.03.2024, as fresh at 12 'O 'clock.

Order Date :- 21.3.2024

Sachin

Court No. - 42

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Petitioner :- Pramod Kumar

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Sanjai Srivastava

Counsel for Respondent :- G.A.

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Gajendra Kumar,J.

1. Heard learned counsel for the petitioner, Mr. P.C. Srivastava, learned Sr. Advocate, assisted by Mr. G.K. Upadhyaya, learned Advocate appeared on behalf of the Electricity-department and Mrs. Manju Thakur, learned A.G.A. for the State.
2. In deference to the order passed by this Court on 21.2.2024, Mr. Sanjay Kumar, Executive Engineer is present before this Court.
3. Before further proceeded in the matter, let Superintendent Engineer concerned may file parawise response in the matter.
4. Let the matter be listed on **15.04.2024 in the top ten cases** of additional cause list.
5. It is provided that till the next date of listing, no coercive measures shall be adopted against the petitioner.
6. It is made clear that personal appearance of the officer concerned stands dispensed with.

Order Date :- 22.3.2024

Sachin



HIGH COURT OF JUDICATURE AT ALLAHABAD

CRIMINAL MISC. WRIT PETITION No. - 2340 of 2024

Pramod Kumar

.....Petitioner(s)

Versus

State Of Up And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Sanjai Srivastava
Counsel for Respondent(s)	:	G.A.

Court No. - 49

HON'BLE AJAY BHANOT, J.
HON'BLE DIVESH CHANDRA SAMANT, J.

The matter is taken up in the revised call.

None appears on behalf of the petitioner to press the petition.
Name of counsel for the petitioner is shown in the cause list.
Learned AGA for the State is present.

The writ petition is dismissed for non prosecution.

Interim order if any stands vacated.

(Divesh Chandra Samant,J.) (Ajay Bhanot,J.)

July 16, 2026
ADY